

HOUSE BILL 49

By Davis

AN ACT to amend Tennessee Code Annotated, Title 8,
Chapter 7, Part 1 and Title 8, Chapter 7, Part 3,
relative to district attorneys general.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 8-7-309(a), is amended by adding the following as a new subdivision:

(7) Provide legal counsel and advice to district attorneys general and their staff related to the performance of their duties. The legal counsel and advice to district attorneys general and their staff may be provided by attorneys employed with the district attorneys general conference.

SECTION 2. Tennessee Code Annotated, Section 8-7-309, is amended by adding the following as a new subsection:

(d) Legal counsel and advice provided pursuant to subdivision (a)(7) is confidential and privileged, including any documents or other communications made or used in connection with the legal counsel or advice. All communications and documents made confidential by this subsection (d) are not public records as defined by § 10-7-503 and are not open to public inspection, examination, or copying except pursuant to a valid and final court order as provided by § 10-7-505.

SECTION 3. Tennessee Code Annotated, Section 8-7-302, is amended by designating the existing language as subsection (a) and adding the following:

(b) All meetings of the conference are subject to the open meetings provisions of title 8, chapter 44, except that the conference executive committee and the finance and audit committee may hold confidential, nonpublic executive sessions to discuss:

(1) Items deemed not subject to public inspection under §§ 10-7-503 and 10-7-504, and all other matters designated as confidential or privileged under this code;

(2) Litigation;

(3) Audits or investigations;

(4) Information protected by federal law; and

(5) Matters involving requests, information, investigations, proceedings, or prosecutions conducted by a district attorney general pro tem appointed under § 8-7-106.

(c) During a confidential, nonpublic executive session by the executive committee or finance and audit committee of the conference, the committee shall not consider any business other than matters described in subdivisions (b)(1)–(5).

(d) A meeting at which both subject matter open to the public and confidential subject matter will be discussed must be conducted as follows:

(1) All business relating to subject matter that is public in nature must be conducted first; and

(2) At the conclusion of the meeting relating to subject matter that is public in nature, the chair shall announce that the public portion of the meeting is adjourned and that the remainder of the meeting will concern matters that are confidential under subdivisions (b)(1)–(5). When everyone at the meeting who is not authorized to attend the confidential portion of the meeting has departed, the confidential portion of the meeting may commence.

SECTION 4. Tennessee Code Annotated, Section 8-7-106(b), is amended by deleting "specific criminal proceedings, including grand jury proceedings," wherever it appears and substituting "specific criminal or civil proceedings, including, but not limited to, grand jury

proceedings; actions for removal of officers under title 8, chapter 47; quo warranto actions under title 29, chapter 35; actions for abatement of nuisance under title 29, chapter 3; forfeiture actions under title 40, chapter 33, or title 39, chapter 11, part 7; actions pursuant to the Post-Conviction Procedure Act codified in title 40, chapter 30, part 1; actions related to the regulation, care, and maintenance of cemeteries under § 46-1-304; and any other proceeding".

SECTION 5. This act takes effect upon becoming a law, the public welfare requiring it.